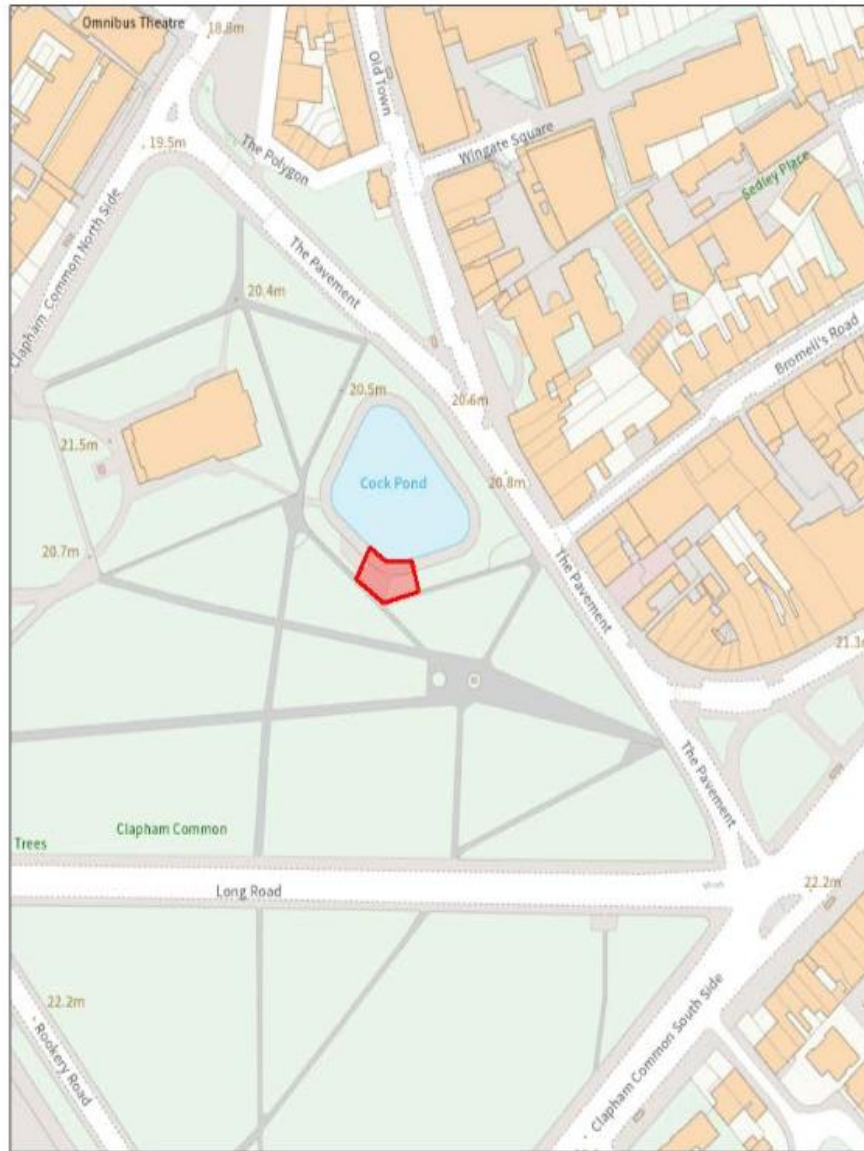


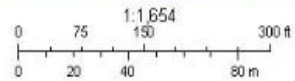
Case Number 25/03123/FUL
Application Address CockPond, Clapham Common London SW4 0JB



Planning Applications Committee



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Application for Planning Permission

Application ref: 25/03123/FUL
Site: CockPond, Clapham Common, London, SW4 0JB
Ward: Clapham Common and Abbeville
Description: Retrospective Permission for Temporary use of land from 1st October to 30th April 2026 for two sauna cabinets, six plunge tubs, one kiosk, seating area with stretch tent canopy above, and 2 metre high boundary fencing with painted plywood entrance gates.
Applicant: Mr Mark Tucker
Case officer: Camilla Bebb
Drawing nos. See appendix 1
Reason for PAC referral: Applications for planning permission or Other Town and Country Planning Applications, which are recommended for approval, where the application is made by the Council, or by a third party, in relation to land in the Council's ownership and in respect of which the Council intends to grant to a third party any form of right or interest over that land.

Recommendations:

1. Resolve to **grant conditional planning permission**
2. Agree to delegate authority to the Director of Climate Change, Planning and Transport to: (a). Finalise the recommended conditions as set out in this report, addenda and/or PAC minutes;
3. In the event that the Committee resolves to refuse planning permission and there is a subsequent appeal, delegated authority is given to the Director of Climate Change, Planning and Transport, having regard to this report, addendums and/or PAC minutes, to propose planning conditions of the Town and Country Planning Act 1990 in order to meet the requirement of the Planning Inspector.

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1. Summary of application

1.1 Executive summary

- 1.1.1 This application seeks retrospective full planning permission for the temporary use of part of Clapham Common for modular saunas and associated infrastructure, located within the splash pad water play area. The proposed dates for this use are between 1st October 2025 and 30th April 2026. It is noted that the use has commenced on site prior to permission being granted, therefore, the description of development now reads as being retrospective.
- 1.1.2 The proposed temporary use is for a leisure facility comprising two sauna cabins, six plunge tubs, a small kiosk for staff operations and customer transactions, a seating area covered by a stretch tent canopy, and 2-metre-high Heras fencing with a wood-effect finish and plywood entrance gates. The majority of the structures are positioned on existing hardstanding adjacent to the splash pool facility within Clapham Common.
- 1.1.3 Officers consider that the principle of the temporary use of this small section of Clapham Common for the installation of sauna facilities and associated infrastructure is acceptable and represents an appropriate form of development within Metropolitan Open Land ("MOL"). The proposal has been considered to have low levels of less than substantial harm to the conservation area and listed building, Church of Holy Trinity. This harm has been carefully considered and weighed against the identified public benefits of the scheme, in accordance with the statutory requirements and relevant planning guidance. On balance, the benefits are judged to outweigh the harm. The associated impacts in respect of transport, residential amenity, biodiversity, trees, ecology, flooding, sustainability, and public safety have been fully assessed and are considered acceptable.
- 1.1.4 When the development plan is looked at as a whole, in officers' assessment, the proposal accords with it. In officers' assessment, the identified conflict with heritage policies is not such as to mean that the development plan, when looked at overall, is not complied with. The application is therefore recommended for approval, subject to conditions, in accordance with the presumption in favour of sustainable development conferred upon local planning authorities by the National Planning Policy Framework 2024 ("NPPF").

1.2 Relevant designations

Type of designation	Applicable designation
Listed Building	No listed buildings within the site boundary. Relevant adjacent listed buildings: Church Of Holy Trinity (Grade II*) Drinking Fountain approximately 500 metres to south-east of Church of Holy Trinity (Grade II)
Conservation Areas	CA1: Clapham Conservation Area

Flood Zone	Flood Zone 1 (low risk of flooding)
Metropolitan Open Land	Clapham Common Metropolitan Open Land
Land Subject to Commons Registration	Clapham Common
Archaeological Priority Areas	Archaeological Priority Areas
CAA Helipad Safeguarding Zone	CAA Helipad Safeguarding Zone
Smoke Control Area	Smoke Control Area

1.3 Key information

1.3.1 Site area

Total site area (sqm)	Total site area (hectares(ha))
316	0.0316

1.3.2 Legal services clearance

Name / position	Lambeth department	Date sent	Date received	Report cleared	Comments in para:
Sam Woodhead, Planning Lawyer	Legal Services	05/01/2026	05/01/2026	09/01/2026	Throughout document

1.4 Summary of consultation

- 1.4.1 A public consultation was undertaken. A site notice was displayed and a press notice issued. 37 properties were consulted on the application. One representation of support was received during the consultation, and there were no objections.

2. Site context and proposal

2.1 Site description

- 2.1.1 Clapham Common is a large public open space, measuring approximately 206 acres, located between the London Boroughs of Lambeth and Wandsworth. The Common is designated as MOL and lies within the Clapham Conservation Area. It is a historically significant landscape that has served as a public amenity since the 19th century.
- 2.1.2 Clapham Common is bounded by Clapham Common North Side and South Side, with The Pavement and Long Road forming part of its eastern edge. The application site is situated adjacent to the former Cock Pond area, now redeveloped as a splashpad water play facility, near the Holy Trinity Church and Clapham Old Town.



Image 1: The site outlined in red in relation to the wider Common

- 2.1.3 Clapham Common is a designated Conservation Area (CA) and contains several listed buildings and structures, including Holy Trinity Church (Grade II*), the Clapham Common War Memorial (Grade II), and the historic drinking fountain (Grade II). The Common has a rich history of recreational use, with features such as the former Cock Pond, now adapted for modern play facilities.
- 2.1.4 The Common accommodates a variety of leisure and recreational facilities. The former Cock Pond area, where the proposal is located, has historically been associated with water-based recreation and was recently developed through the approved splashpad development and associated infrastructure.

- 2.1.5 Clapham Common has a long tradition of hosting community events and activities, contributing to its communal and cultural significance. It remains publicly accessible throughout the year and is a focal point for local residents and visitors.
- 2.1.6 The application site is a small, hard-surfaced area of the splashpad facility, enclosed by low railings and accessed via existing gates. It is positioned away from residential properties.
- 2.1.7 The application site does not contain any listed buildings but is within Clapham Conservation Area.



Image 2: Image of site location



Image 3: Image of site location

2.2 Requirement for other approvals

2.2.1 The purpose of this section is to explain:

- Other consent regimes relating to the holding of events on Clapham Common;
- The relationship between these different types of assessment/approval processes.

- 2.2.2 Planning permission is sought for the temporary use of part of Clapham Common and associated temporary structures. The details of the consultation and engagement for this application are set out in Section 3 of this report.

Other consent regimes relating to the holding of events on Clapham Common

EventLambeth and Licensing

- 2.2.3 The Council's events team, EventLambeth, are involved with more than 200 public events that take place across the Borough each year. These include community, charity and commercial events.
- 2.2.4 Any event in a Lambeth Park, open space or street must be approved by EventLambeth. All public events are subject to regulation as outlined in the Council's published guide to organising outdoor events in Lambeth, which is available on the Council's website (Lambeth Events Policy 2020–2025).
- 2.2.5 Events that have licensable activities are subject to scrutiny from the Council's licensing team.
- 2.2.6 As part of the event licensing process, event organisers are required to submit Event Site Management Plans which cover areas such as organisation of events (event structure, boundaries of sites); crowd management; details of infrastructure and facilities; build and breakdown plans; and noise management.

The relationship between a planning permission, EventLambeth and Premises licence

- 2.2.7 The general approach in imposing planning controls is to avoid duplication where controls already exist by other means. This approach is supported by Planning Practice Guidance ("PPG") which states:
- 'When proposed developments could include activities that would be covered by the licensing regime, local planning authorities should consider whether the potential for adverse noise impacts will be addressed through licensing controls (including licence conditions). Local planning authorities should not however presume that licence conditions will provide for noise management in all instances and should liaise with the licensing authority' (PPG Paragraph: 006 Reference ID: 30-006-20190722).'*
- 2.2.8 Paragraph 57 of the NPPF states planning conditions should be kept to a minimum and should only be imposed where they are: necessary, relevant to planning and to the development to be permitted, enforceable, precise and reasonable in all other respects.
- 2.2.9 Events on Clapham Common already require the consent of the Council through an event permit and licencing regime as outlined above. There is an existing framework which ensures events are appropriately managed outside of planning. Together with protection offered under the Control of Pollution Act 1974 and Environmental Protection Act 1990 legislation dealing with statutory nuisance, a robust enforcement mechanism also already exists. These are considered the most efficient methods of controlling the operational activity of the events; applying planning conditions beyond the tests set in the NPPF would be a duplication of control.

2.3 Proposal description

- 2.3.1 Full retrospective planning permission is sought for the temporary use of part of Clapham Common for a seasonal leisure facility comprising two sauna cabins, six plunge tubs, a small kiosk, and associated seating under a stretch tent canopy. Planning permission is sought to cover the installation and removal of all temporary structures and ancillary works between 1st October 2025 and 30th April 2026. It is noted that the use on the site and all associated infrastructure has already commenced. During this period, the enclosed area will not be available for general public access as the space will be controlled by the operator and a booking system.

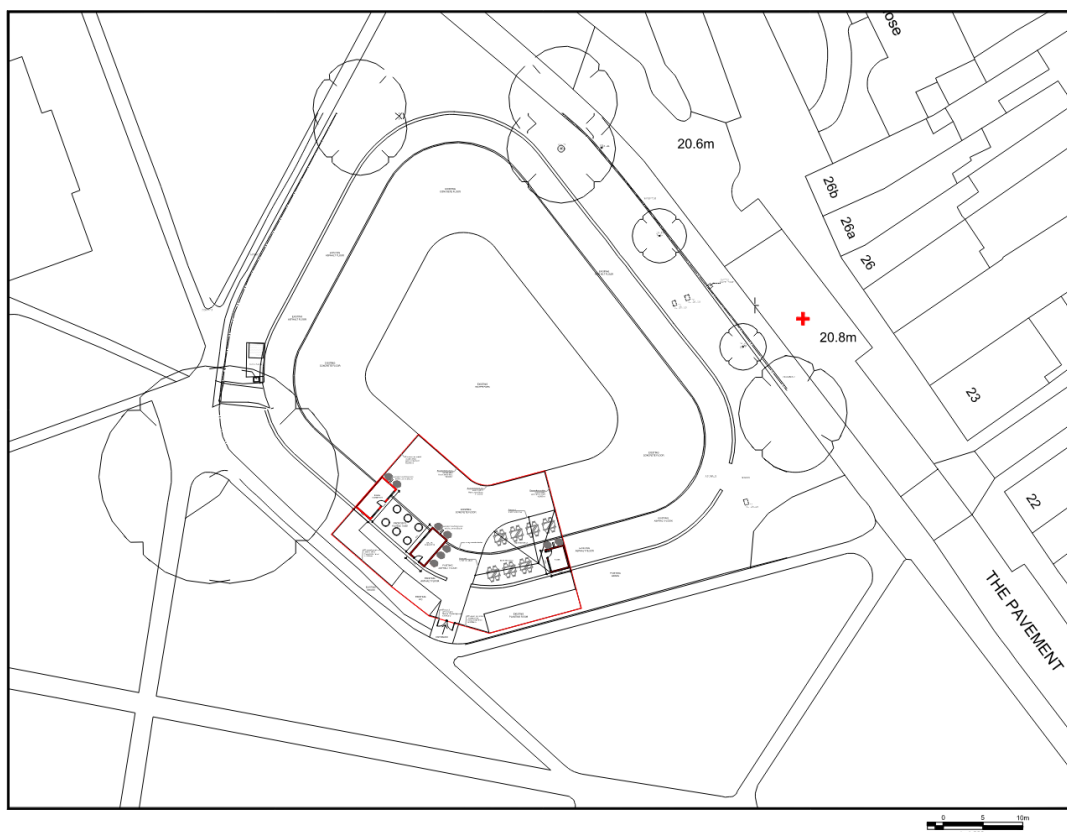


Image 4: Proposed layout of the sauna facility within Clapham Common

- 2.3.2 The facility will be open to the public daily from 08:00 to 21:00, offering bookable sessions for sauna and plunge pool use. Access will be managed within a secure, fenced enclosure adjacent to the existing splashpad area. Entry will be controlled to ensure safe operation and maintain the integrity of the surrounding park environment.
- 2.3.3 The installation includes two timber-clad sauna cabins and a timber kiosk for staff operations and customer transactions, accompanied by six plunge tubs and a seating area beneath a stretch tent canopy. The site will be enclosed using Heras fencing with a wood-effect finish and painted plywood entrance gates, providing security and clear delineation of the leisure area. All components are modular, freestanding, and designed for complete removal at the end of the operating period on 30th April 2026, with no permanent groundworks or fixtures. Existing utilities and drainage will be utilised, and additional lighting will be installed within the enclosed area to ensure safe use during operating hours.

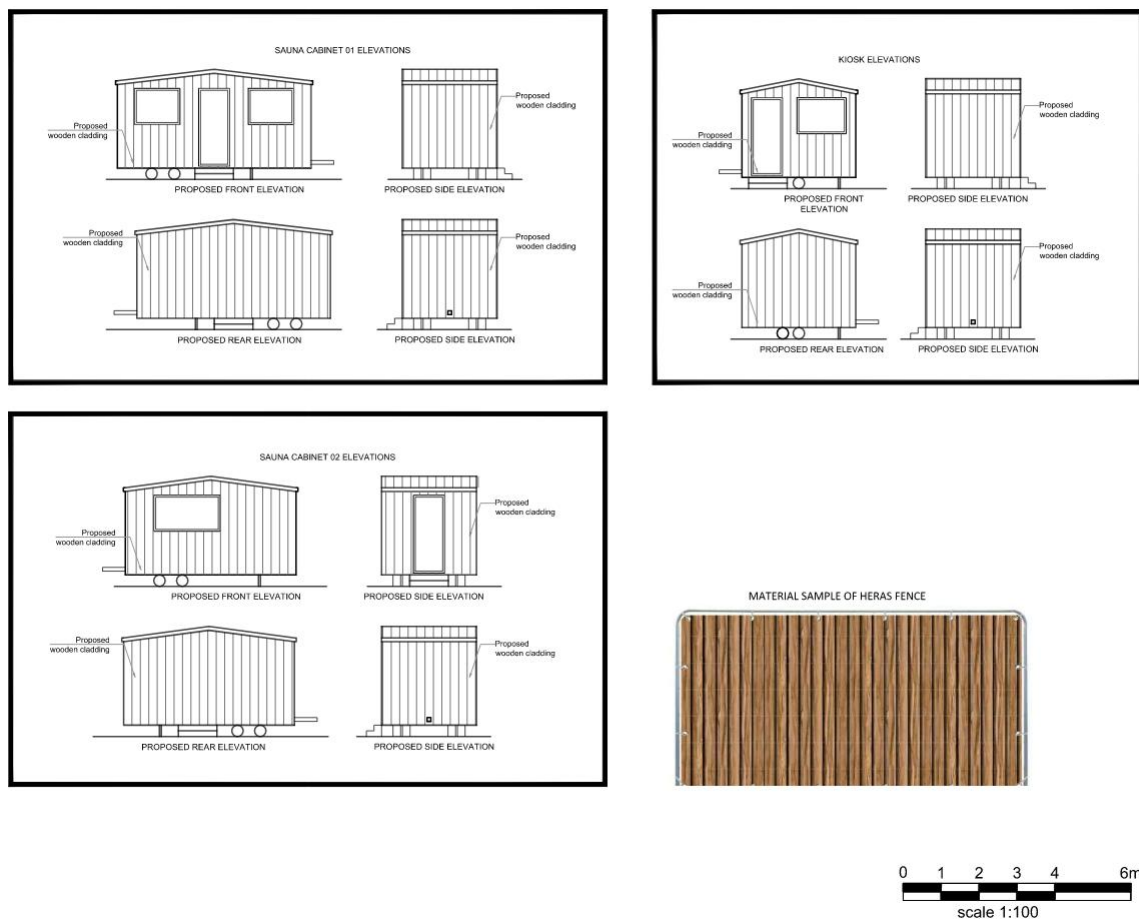


Image 5: Proposed Cabin and Heras Fence



Image 6: Photograph of site



Image 7: Photograph of site



Image 8: Photograph of site

2.3.4 The submitted plans and documents for this application can be found at <https://planning.lambeth.gov.uk/online-applications/simpleSearchResults.do?action=firstPage>

2.4 Relevant planning history

[↑ To contents](#)

2.4.1 Application site

2.4.1.1 The relevant planning history for the application site is as follows:

Planning applications

2.4.1.2 Application ref. 22/03020/FUL for full planning permission was granted on 14.02.2023 for “Construction of a new 'splashpad' water play area within the basin of the existing pond, including refurbishment of the surfaces, improved access, relocation of the entrance gates and additional of two modular buildings containing WCs and new plant equipment plus provision of cycle parking spaces.”

2.4.1.3 Application ref. 23/00844/NMC for a non material amendment was granted on 12.04.2023 for “Application for a non-material amendment following a grant of planning permission ref: 22/03020/FUL (Construction of a new 'splashpad' water play area within the basin of the existing pond, including refurbishment of the surfaces, improved access, relocation of the entrance gates and additional of two modular buildings containing WCs and new plant equipment plus provision of cycle parking spaces) granted on 14.02.2023.

Amendment sought: switching of the proposed positions of the pre-fabricated Plant and WC buildings and associated bicycle parking”

Application ref. 23/01593/DET for discharge of conditions 3, 4 and 7 of application 22/03020/FUL was granted on 24.08.2023 “Approval of details pursuant to conditions 3 (plans of proposed interactive splash equipment), 4 (Soft landscaping plans) and 7 (Construction plan) of planning permission 22/03020 (Construction of a new 'splash pad' water play area within the basin of the existing pond, including refurbishment of the surfaces, improved access, relocation of the entrance gates and additional of two modular buildings containing WC's and new plant equipment plus provision of cycle parking spaces.) Granted on 14.02.2023.”

3. Consultation and engagement

3.1 Application consultation - public consultation

- 3.1.1 A public consultation was undertaken in accordance with statutory and Council requirements. Letters were sent to a total of 37 properties surrounding the application site. One site notice was posted next to the proposed site entrance on 28th November 2025 and a press notice was issued on 5th November 2025. Public consultation ended on 5th December 2025. One comment in support was received following the consultation, [and there were no objections].

Supporting Comment	
Summary of comment	Officer response
Clapham Common Management Advisory Committee confirm the committee expressed their support for this application following 2 meetings with the event organisers and after noting the popularity of similar saunas across London and in Ruskin Park in Lambeth in particular.	Noted.

3.2 Application consultation – external, internal and other consultees

3.3 Internal consultees

Summary of comments	Officer response
Conservation and Urban Design	
Considered a low level of harm to the conservation area and the listed church's setting.	Please see section 4.2.3 of the report in which these comments are reflected.
Planning Policy	
The scheme must also comply with Lambeth Local Plan policies EN1 (open space) and S2A (community facilities) and reviewed against the NPPF due to MOL land.	Please see section 4.2.2 of the report in which these comments are reflected.
Parks and Open Spaces	
No objections. The proposal is temporary, located on existing hardstanding, and will not harm Clapham Common's landscape, ecology, or character. It makes positive use	Please see section 4.2.6 of the report in which these comments are reflected.

of an inactive area, reduces antisocial behaviour, and poses minimal environmental or heritage impact. No priority habitats or trees are affected, and operational measures will protect nearby grassland. While biodiversity net gain is not required, enhancements like planters would be welcomed.	
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4. Application assessment

4.1 Planning policies

- 4.1.1 Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires planning decisions to be made in accordance with the development plan unless material considerations indicate otherwise.
- 4.1.2 The development plan for the Site is the London Plan 2021 ("LP") and the Lambeth Local Plan 2021 ("LLP").
- 4.1.3 The NPPF was last revised in 2024. This document sets out the Government's planning policies for England including the presumption in favour of sustainable development. It is a material consideration in the determination of all applications.
- 4.1.4 The application has been considered against all relevant national policies and development plan policies, as well as any relevant guidance. A list of the main relevant policies and guidance has been set out in **Appendix 2** to this report.
- 4.1.5 The report addresses compliance with specific development plan policies. The planning balance section of the report sets out an assessment of whether, overall, there is compliance with the development plan.

4.2 Main planning considerations

- 4.2.1 The main planning issues raised by the application that the Committee must consider are:

- Principle of land use
- Heritage impact
- Amenity impact
- Transport
- Biodiversity, Landscaping and Tree Protection
- Sustainability and Air Quality
- Flood Risk and Drainage
- Crime Prevention, Visitor Management and Public Safety

4.2.2 Principle of land use

Presumption in favour of sustainable development

- 4.2.2.1 The NPPF sets the presumption in favour of sustainable development, and this is reflected in LLP Policy D2 and the other policies in the plan. LLP Policy D2 states that the Council will always work proactively with applicants jointly to find solutions which mean that proposals can be approved wherever possible and to secure development that improves the economic, social and environmental conditions in Lambeth.

Proposed temporary use

- 4.2.2.2 Clapham Common is a major public open space bounded by main roads and mature trees, with a long history of sports, recreation, cultural activities, and community events. It is designated as MOL and lies within the [Clapham Common Conservation Area], which includes several listed buildings such as Holy Trinity Church (Grade II*). The Common is heavily used for leisure and recreation.

- 4.2.2.3 LLP Policy PN5 outlines the importance of conserving, managing and improving Clapham Common through the implementation of the Clapham Common Masterplan.
- 4.2.2.4 The principle of temporary recreational use aligns with LLP Policy S2, EN1 and PN5, provided the nature of the activity and its impact on openness are acceptable.
- 4.2.2.5 Policy G3 of the LP relates to MOL and seeks to give the strongest protection to MOL from inappropriate development; giving it the same level of protection that is offered to the Green Belt. Development should be limited to small scale structures to support outdoor open space uses and minimise any adverse impact on the openness of MOL.
- 4.2.2.6 The proposal would not result in any permanent loss of existing public open space; the open space will be returned to its existing situation and there are no permanent alterations proposed.
- 4.2.2.7 When considering an application involving MOL, reference to the 'Green Belt' needs to be read as reference to MOL. Paragraphs 142-160 of the NPPF relate to protecting Green Belt land. Paragraph 142 of the NPPF states that *"the Government attaches great importance to Green Belts. The fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open; the essential characteristics of Green Belts are their openness and their permanence"*.
- 4.2.2.8 Considering the aims set out above, the proposal would not result in urban sprawl and would not affect the permanence of the Green Belt. Due to the size, location and temporary nature, the Common would remain without any permanent alteration and the areas where the temporary use is located will revert back to open space. While the installation introduces additional built form and enclosure, its modest scale, seasonal nature, and location within an established fenced area limit visual and spatial impact. Views across the Common will largely remain open, and the proposal does not conflict with the purposes of MOL as set out in NPPF paragraphs 142–143. The development supports outdoor recreation and community wellbeing, consistent with NPPF paragraph 154(b), which allows appropriate facilities for sport and recreation provided openness is preserved. There would be no engineering operations as a result of the proposal. There would be no long term displacement of natural vegetation or habitat.
- 4.2.2.9 Paragraph 153 of the NPPF states that local planning authorities should ensure that substantial weight is given to any harm to the Green Belt, including harm to its openness and that inappropriate development in Green Belt *'should not be approved except in very special circumstances.'* 'Very special circumstances' will not exist unless the potential harm to the Green Belt by reason of inappropriateness, and any other harm resulting from the proposal, is clearly outweighed by other considerations.
- 4.2.2.10 Development in the Green Belt is inappropriate unless one of the exceptions detailed within NPPF Paragraph 154 applies. For this proposal, it is considered that the exception in part b is most relevant:

b) the provision of appropriate facilities (in connection with the existing use of land or a change of use), including buildings, for outdoor sport, outdoor recreation, cemeteries and burial grounds and allotments; as long as the facilities preserve the openness of the Green Belt and do not conflict with the purposes of including land within it;

- 4.2.2.11 Considering paragraph 154(b) of the NPPF, the proposal is seasonal, low-impact, and enhances the recreational and cultural use of Clapham Common. It activates an underused space during winter months due to the splashpark not being open supports community wellbeing, and expands the visitor options to the area and Common. The area is modest in scale, involves no permanent structures, and will be fully restored at the end of the operating period. Officers consider this use consistent with the interpretation of “outdoor recreation,” which includes temporary leisure facilities. Therefore, the proposal is considered a compatible and acceptable temporary use within MOL, contributing positively to the Common’s role as a community asset and meeting the exception under paragraph 154(b).
- 4.2.2.12 Notwithstanding the above, paragraph 154(b) allows for certain operations and buildings while preserving openness. In this case, aside from the fencing and small kiosk, the main site area will remain largely open, with sauna cabins and plunge pools positioned on existing hardstanding. While some fencing and structures may partially reduce views, these elements are temporary and reversible. The location—within an established splash play enclosure near the park’s edge—ensures that wider views across the Common remain open and uninterrupted. Assessing the development holistically, officers consider that the limited spatial and visual changes would preserve the openness of the MOL.
- 4.2.2.13 Having regard to the five purposes of the Green Belt set out in paragraph 143 of the NPPF, officers do not consider any would be compromised. The site forms part of the wider park experience and functions as an outdoor recreational activity, consistent with paragraph 150 of the NPPF.
- 4.2.2.14 Should Members of the Planning Committee take a different view and consider that the temporary use of land does not fall within the exception test under 154(b) and would result in harm to the openness of MOL, and therefore constitutes inappropriate development in terms of Green Belt policy, it is necessary to assess whether ‘very special circumstances’ exist that clearly outweigh the harm.
- 4.2.2.15 Paragraph 153 of the NPPF states that inappropriate development should not be approved except in very special circumstances. These circumstances will not exist unless the harm to the Green Belt (or MOL, by extension) is clearly outweighed by other considerations.
- 4.2.2.16 In this case, Officers consider that there are public benefits which arise from the proposal that amount to very special circumstances set out below. In this case, there are public benefits which arise from the proposal that are considered to amount to very special circumstances:
- Economic Benefits
Support for Local Economy: The facility will attract visitors during the winter months, increasing footfall to nearby businesses on Clapham High Street and The Pavement.
Job Creation: Temporary employment opportunities for staff managing the sauna and plunge pools.
Commercial Revenue: The operation generates income through bookings and associated services, contributing to local economic activity.
 - Social Benefits
Health and Wellbeing: Saunas and plunge pools can provide physical and mental health benefits.
Community Engagement: Activates an underused space during winter, offering a leisure facility for residents and visitors.

- Environmental Benefits

Temporary Biodiversity Enhancements: Temporary planters and shrub planting to existing hard standing.

- 4.2.2.17 Taken together, these public benefits are considered to clearly outweigh any temporary harm to the openness of the MOL. Therefore, should Members consider the proposal to be inappropriate development, it is recommended that planning permission could still be granted on the basis of very special circumstances.
- 4.2.2.18 As such, the proposal is considered on balance to comply with LLP Policies PN5, EN1 and S2, LP Policy G3 and the NPPF and would be an acceptable temporary form of development within Clapham Common in relation to the MOL.

4.2.3 Heritage impact

Approach to heritage considerations

- 4.2.3.1 The beginning of the Agenda Pack sets out the legislative background and the national and borough level policy context. Reference should be made to those materials.
- 4.2.3.2 The first step is to identify the nature and extent of any harm to the significance of any designated heritage assets. This will be a matter for the planning judgement of the decision-maker, looking at the facts of the application and taking into account the importance of the asset in question. Minimal harm to the value of a designated heritage asset should still be placed within the category of less than substantial harm. When assessing any application which may affect the setting of a heritage asset, the impact of cumulative change may need to be considered.
- 4.2.3.3 Clear and convincing justification is required by NPPF paragraph 213 for any harm to the significance of a designated heritage asset. The second step is therefore to balance that harm against the public benefits of the scheme, applying the requirements of NPPF paragraph 215 in the case of less than substantial harm, or NPPF paragraph 214 in the case of substantial harm (or total loss of significance).
- 4.2.3.4 A public benefit can be anything that delivers economic, social or environmental objectives, which are the three overarching objectives of the planning system as set out in the NPPF. The PPG advises that “*public benefits should flow from the proposed development. They should be of a nature or scale to be of benefit to the public at large and not just be a private benefit. However, benefits do not always have to be visible or accessible to the public in order to be genuine public benefits, for example, works to a listed private dwelling which secure its future as a designated heritage asset could be a public benefit*”. The degree of weight to attach to any particular public benefit is a matter for the decision-maker.
- 4.2.3.5 Public benefits can include heritage benefits. If heritage harm and heritage benefit arise in relation to the same asset, the decision-maker should consider whether the benefit would prevent the harm from arising and, if it would, avoid double-counting the heritage benefit when identifying the public benefits. If there is harm to one asset but a heritage benefit to a different asset, the heritage benefit accruing to one should not be treated as meaning that there is no heritage harm to the other.

- 4.2.3.6 Importantly, the balancing exercises required by NPPF paragraphs 214 and 215 are not simple unweighted exercises in which the decision-maker is free to give heritage harm whatever degree of weight they wish. In *Barnwell Manor* the Court of Appeal identified that the decision-maker needed to give “*considerable importance and weight*” to any finding of likely harm to a listed building or its setting in order properly to perform the section 66 duty. Sections 66 and 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990 amount to a statutory presumption against development that would harm the significance of a listed building or a conservation area. The presumption can be outweighed, but only if there are material considerations (which will include a proposal’s public benefits) that are strong enough to do so.
- 4.2.3.7 The decision-maker needs to ensure that they give considerable importance and weight to harm to the significance of a designated heritage asset, and ensure that the more important the asset, the more weight is given to the harm in the balancing exercise. Where the significance of more than one designated heritage asset would be harmed by the proposed development, the decision-maker needs to account for each individual harm and identify, overall, the resulting degree of less than substantial harm or substantial harm.
- 4.2.3.8 The assessment of the nature and extent of harm to the significance of a non-designated heritage asset is a matter for the planning judgement of the decision-maker, looking at the facts of the application and considering the importance of the asset in question. The NPPF does not prescribe how the balanced judgement required should be undertaken, or what weight should be given to any particular matter.

Assessment of heritage impact

- 4.2.3.9 The impact of the proposed development has been assessed against the following heritage assets:

Conservation areas

- 4.2.3.10 The site is within the Clapham Conservation Area (CA1).

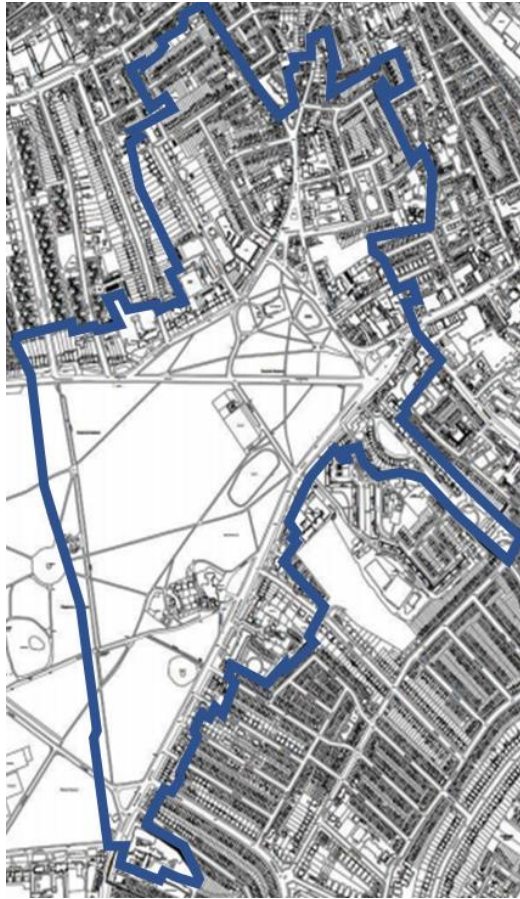


Figure 1: Clapham Conservation Area (CA1).

- 4.2.3.11 Figure 1 shows the extent of the Clapham Conservation Area. The heritage significance of the conservation area is its character as a levelled wide-open space bounded by main roads and mature trees. The common itself forms the heart of the Clapham Conservation Area. The historic Clapham village Old Town (north east of the common) is included within the conservation area and has some of the oldest properties in Lambeth dating back to 1706. The common is a flat grassed open land with mature trees tracking the boundary of the common and public paths. The open common itself is a significant part of the significance of the conservation area, with it defining the surrounding pattern of development. The common has a long history of recreation use and hosting temporary events with associated temporary structures.

Listed buildings

- 4.2.3.12 LLP Policy Q20 (Statutory listed buildings) seeks to ensure that development affecting statutory listed buildings will be supported where they would (i) conserve and not harm the significance/special interest; (ii) not harm the significance/setting (including views to and from); and (iii) not diminish its ability to remain viable in use in the long term. The Statutory Listed Buildings are shown within Figure 4.
- 4.2.3.13 There are several statutory listed buildings and structures within the Common and the surrounding streets outlined within 1.2 of the report, and there are none located within the site red line boundary. The Church of Holy Trinity is a Grade II* listed building and whilst it is located outside of the application site, the Church forms part of the wider views and setting across Clapham Common which is temporary obscured by the temporary structures. Other

than the Church of Holy Trinity officers are satisfied that the proposal would not harm the setting or significance of these adjacent statutory listed buildings.

- 4.2.3.14 In relation to the Church, the Conservation Officer concluded that the installation of further structures and formal enclosure obscure views of the grade II* church when approaching from Clapham Common South Side; which is a three-dimensional structure in an historic landscape. The Conservation Officer considered the additional structures result in a temporary low degree of harm to the setting of the Grade II* church.

Non-designated heritage assets

- 4.2.3.15 The proposed site is not considered to contain or impact upon any non-designated heritage assets.

Summary

- 4.2.3.16 The results of the above assessment on the proposal's impact on heritage assets are summarised in the table below:

Designated Heritage Asset	Degree of harm
CA1 – Clapham Common	Low degree of less than substantial harm
Listed Building- Church of Holy Trinity	Low degree of less than substantial harm

- 4.2.3.17 A low degree of less than substantial harm has been identified to the significance of the Clapham Common Conservation Area, Grade II* Church of Holy Trinity. As a result, there is a conflict with Q20 and Q22. Development plan policies relating to heritage matters do not include, within the policies themselves, the application of the balancing exercises set out in the NPPF. The public benefits of the proposal is discussed in section 4.2.2 of the land use section of the report above where it has been concluded that the fencing and structures may partially and temporarily reduce views however, these elements are reversible and the harm would be outweighed by the public benefits of the proposal.

4.2.4 Amenity impact

- 4.2.4.1 The structures are reversible and temporary. They are sited on existing hardstanding within the splash play enclosure, away from sensitive residential boundaries, ensuring no adverse impact on daylight/sunlight, privacy, outlook, or sense of place. Controls are in place under the licensing agreement and will prevent any unacceptable noise or disturbance and public opening hours will be limited to 08:00–21:00 daily, secured by condition.
- 4.2.4.2 The proposal would have an acceptable impact on residential and community amenity, in accordance with LLP Policy Q2.

4.2.5 Transport

- 4.2.5.1 The application site benefits from excellent public transport accessibility, with a PTAL rating of 6a. It is served by Clapham Common Underground Station and multiple bus routes along Clapham Common North Side and South Side, ensuring sustainable travel options for visitors. The site is also well connected to pedestrian and cycle networks, with existing cycle parking

for 24 bicycles adjacent to the splash play facility, therefore, no further cycle parking has been requested.

- 4.2.5.2 No dedicated car parking is proposed, and the surrounding area is subject to Controlled Parking Zone restrictions. The modest scale of the development means that traffic generation will be limited and comparable to existing recreational uses.
- 4.2.5.3 In terms of refuse and waste, the applicant is responsible for disposing of all refuse arising from use and is not permitted to use park bins to dispose of waste. This has been added as an informative and is part of the licensing agreement.
- 4.2.5.4 The proposals are considered compliant with LP Policy T5 and LLP policies Q2, Q12, Q13, T1, T3, T6, and T7 concerning transport and highway matters.

4.2.6 Biodiversity/Biodiversity Net Gain, Landscape and, Trees

- 4.2.6.1 The proposed development is temporary and located within an existing splash play facility dominated by hardstanding and sealed surfaces. As such, it will not adversely affect the sustainable management, tress, landscape, ecology, or character of Clapham Common landscape.
- 4.2.6.2 The application site contains no UK Priority Habitats, notable species, or sensitive greenspace; any grass within or adjacent to the application boundary is managed as amenity grassland.
- 4.2.6.3 The development is exempt from mandatory 10% biodiversity net gain due to its size and nature, but non-mandatory enhancements such as raised planters or shrub planting have been provided which is welcomed and can be seen in Image 7 above.
- 4.2.6.4 No ground excavations are proposed, and the structures will occupy existing hardstanding, avoiding harm to tree root protection areas (RPAs). An informative has been provided prohibiting vehicle parking on RPAs and preventing attachment of cables or lights to trees. Overall, the scheme poses minimal ecological impact and integrates well with existing features and Officers consider that there would be no harm caused by use.

Sustainability and Air Quality

- 4.2.6.5 A condition has been secured to ensure that no non-road mobile machinery (NRMM) would be used on the site unless it is compliant with the NRMM Low Emission Zone requirements (or any superseding requirements) and until it has been registered for use on the site on the NRMM register (or any superseding register). This would ensure that all machinery to be used on site would be non-polluting to improve air quality.

4.2.7 Flood risk, drainage and ground conditions

- 4.2.7.1 The application site is located on existing hardstanding areas comprising asphalt and concrete surfaces. It is not within a designated flood risk zone, and no watercourses or flood-sensitive features are present within or immediately adjacent to the site. The temporary nature of the development, combined with its lightweight modular structures, ensures no permanent alteration to ground levels or permeability. Surface water drainage will utilise the existing infrastructure serving the splash play facility, which includes established soakaways and connections designed for recreational water use. Given these factors, the proposal is

considered acceptable in terms of flood risk, drainage, and ground conditions, in accordance with the Lambeth Local Plan policies on sustainable water management.

4.2.8 Crime prevention, visitor management and public safety

- 4.2.8.1 The facility will operate within a secure, fenced enclosure with lockable gates and lighting to deter antisocial behaviour. Staff will be present during customer opening hours, and full operation details and agreements secured under licencing. The proposal complies with LLP Policy Q3.

4.2.9 Equality duty and human rights

- 4.2.10 The beginning of the Agenda Pack sets out the legislative background to equalities and human rights considerations and the approach that the decision-maker needs to take. Reference should be made to those materials.
- 4.2.11 Officers do not consider that the proposal would have any adverse impact on people with protected characteristics or that the rights of individuals under the European Convention on Human Rights would be infringed by the proposed development.
- 4.2.12 The proposal would not result in an infringement of the Convention rights of individuals noting that the event area while for retail sales is freely open to the public and wider community who may wish to purchase any goods offered. The remainder of the public park would still be accessible for recreational use.
- 4.2.13 If Members disagree with officers' assessment and consider that there would be an impact not identified by officers, or that the impact identified would be greater than as set out by officers, they should consider whether the weight to be given to that impact when considering the planning balance is such as to mean that planning permission should be refused.

4.3 Planning balance and conclusion

4.3.1 Compliance with the development plan

- 4.3.1.1 Section 70(2) of the Town and Country Planning Act 1990 states that in dealing with an application for planning permission the local planning authority shall have regard to the provisions of the development plan, so far as material to the application, a post-examination draft neighbourhood development plan, any local finance considerations (as defined in section 70(4), to include CIL receipts) and to any other material considerations. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires planning decisions to be made in accordance with the development plan unless material considerations indicate otherwise.
- 4.3.1.2 When assessing whether an application complies with the development plan, it is necessary to look at the development plan as a whole. There may be policies that pull in different directions. It is necessary to reach a judgement about whether, when looked at overall, the application amounts to a departure from the development plan. Factors relevant to this judgement can include the number of policies not complied with, the extent of any non-compliance, how up to date various policies are, and whether a policy relates to the principle of development or a more minor aspect.
- 4.3.1.3 Full retrospective planning permission is sought for the temporary use of part of Clapham Common for a temporary leisure facility comprising two saunas, six plunge pools, a kiosk, and

associated seating and ancillary infrastructure. Permission is sought to cover the installation, operation, and removal of all temporary structures between 1st October 2025 till 30th April 2026

- 4.3.1.4 In terms of land use, officers consider the proposal appropriate as it introduces no permanent impact on the openness of Metropolitan Open Land (MOL). All structures are temporary and reversible, and the site will be restored to its original condition following the operating period. The use does not conflict with other land use policies within the development plan.
- 4.3.1.5 Proposed measures for transport, amenity, ecology, trees and biodiversity, flooding and surface water, security, transport are considered satisfactory, ensuring compliance with relevant policies.
- 4.3.1.6 A low degree of less than substantial harm has been identified to designated heritage assets as a result of the proposals and therefore the application does not comply with development plan policies Q20 and Q22 relating to heritage. When the development plan is looked at as a whole, in officers' overall assessment, the proposal accords with it. The development plan policies identified as relevant to the assessment of the application are outlined within the report and do not conflict with the development plan with save for those relating to heritage where a low degree of less than substantial harm to Clapham Common Conservation area, and the Church of Holy Trinity a designated heritage assets has been outlined.
- 4.3.1.7 In officers' assessment, the identified conflict with heritage policies is not such as to mean that the development plan, when looked at overall, is not complied with, the public benefits need to be considered and are outlined within the report. The application of section 72 and section 66 imposes a duty to treat harm to a designated heritage asset as a consideration to which the decision-maker must give considerable importance and great weight when carrying out the balancing exercise, and that it is not open to the decision-maker merely to give the harm such weight as he thinks fit, in the exercise of his planning judgment. Harm has been identified at the low end of the spectrum of such harm, therefore in accordance with policy 215 of the National Planning Policy Framework, the less than substantial harm has been weighed against the public benefits arising from the scheme. The public benefits of the scheme as set out in the report are considered within the report to outweigh the less than substantial harm identified from the temporary structures to facilitate this proposal.

4.3.2 Other material considerations

- 4.3.2.1 Officers have identified the following material considerations in relation to the application.

Public benefits

- 4.3.2.2 As set out earlier in the report, the proposal would result in a low degree of less than substantial harm to the significance of the Clapham Common Conservation area, and the Church of Holy Trinity, a designated heritage asset. Officers have applied the relevant balancing exercise in NPPF paragraph 215. The public benefits of the scheme are set out in section 4 and comprise environmental, economic, cultural and community benefits. Significant weight is given to each of the public benefits identified and cumulatively these are considered to outweigh the less than substantial harm identified. Giving the less than substantial heritage harm considerable importance and weight, in officers' assessment the harm would be outweighed by the public benefits of the proposal. As a result, the test in NPPF paragraph 215 is satisfied.

- 4.3.2.3 If Members disagree with officers' assessment in respect of heritage impact, they will need to identify the level of harm they consider would be caused and apply the test in the relevant NPPF paragraph.

Equalities and human rights

- 4.3.2.4 The position as regards equalities and/or human rights impacts is addressed in section 4.3 of the report.

4.3.3 Conclusion

- 4.3.3.1 In officers' assessment the application complies with the development plan when looked at overall.
- 4.3.3.2 There are no material considerations which outweigh the merits of the proposal and its compliance with the development plan. Officers are therefore recommending that the application is approved.

4.4 Recommendations

1. Resolve to **grant conditional planning permission**.
2. Agree to delegate authority to the Director of Climate Change, Planning and Transport to: (a). Finalise the recommended conditions as set out in this report, addenda and/or PAC minutes.
3. In the event that the Committee resolves to refuse planning permission and there is a subsequent appeal, delegated authority is given to the Director of Climate Change, Planning and Transport, having regard to this report, addenda and/or PAC minutes, to propose planning conditions and to negotiate and complete a document containing obligations pursuant to Section 106 of the Town and Country Planning Act 1990 in order to meet any such requirements of the Planning Inspector.

5. Appendices

5.1 Appendix 1 – Draft Decision Notice

Your Ref:



Our Ref: 25/03123/FUL

Mr Mark Tucker
c/o Mr Mark Mirams
50 Grosvenor Hill
London
W1K 3QT

DRAFT DECISION NOTICE

Dear Mr Mark Tucker

TOWN AND COUNTRY PLANNING ACT 1990.

PERMISSION FOR DEVELOPMENT

The London Borough of Lambeth hereby permits under the above mentioned Acts and associated orders the development referred to in the schedule set out below **subject to any conditions imposed** therein and in accordance with the plans submitted, save in so far as may otherwise be required by the said conditions.

In accordance with the statutory provisions your attention is drawn to the statement of Applicant's Rights and General Information attached.

Application Number: 25/03123/FUL **Date of Application:** 03.10.2025

Proposed Development At: CockPond, Clapham Common London SW4 0JB

For: Retrospective Permission for Temporary use of land from 1st October to 30th April 2026 for two sauna cabinets, six plunge tubs, one kiosk, seating area with stretch tent canopy above, and 2 metre high boundary fencing with painted plywood entrance gates.

Approved Plans

P1; P2; P3; P4; P5.

Conditions

1 The development hereby permitted shall be carried out in accordance with the approved drawings and documents: P1; P2; P3; P4; P5.

[↑ To contents](#)

Reason: For the avoidance of doubt and in the interests of proper planning to ensure an acceptable standard of development in accordance with the development plan.

2 The temporary structures and fencing hereby permitted shall be removed from the land and the temporary use discontinued on or before the 30th April 2026.

Reason: The nature and duration of the temporary use and structure are acceptable, but the use of this part of the Common on a continuous and permanent basis, would cause unacceptable harm to the character and appearance of the Common and conservation area and the openness of the Metropolitan Open Land (Policies EN1, Q2, Q20 and Q22 of the Lambeth Local Plan (2021)).

3 All waste, refuse and recycling will be removed from the event site, and the area within 10m of the perimeter of the event site, by the end of one day after completion of de-rigging of the event site.

Reason: To ensure suitable provision for the occupiers of the development, to encourage the sustainable management of waste and to safeguard the visual amenities of the area (Policies Q2 and Q12 of the Lambeth Local Plan (2021)).

4 All vehicles are to enter and exit the site in forward gear, and banksman are to be used when required for vehicle movements onto Lambeth parkland.

Reason: To minimise danger, obstruction and inconvenience to users of the highway (policies T1, T6 and T8 of the T3, T7, T8, and T9 of the Lambeth Local Plan (2021)).

5 No non-road mobile machinery (NRMM) shall be used on the site unless it is compliant with the NRMM Low Emission Zone requirements (or any superseding requirements) and until it has been registered for use on the site on the NRMM register (or any superseding register).

Reason: To ensure that air quality is not adversely affected by the development (Policy SI 1 of the London Plan (2021)).

6 No customer access or use shall occur before 08:00 after 21:00 Monday to Sunday. Outside of these hours, staff may access the site for the purposes of setup, restocking, and site closure, with no customer activity permitted.

Reason: To protect the amenity of neighbouring occupiers in accordance with Policy Q2 of the Lambeth Local Plan (2021)).

Notes to Applicants:

In dealing with this application the Council has acted in line with the National Planning Policy Framework to work with the applicant in a positive and proactive manner. The council has made available on its website the policies and guidance provided by Lambeth Local Plan 2020-2035 (September 2021) and its supplementary planning documents. We also offer a full pre-application advice service in order to ensure that the applicant has every opportunity to submit an application that's likely to be considered acceptable.

1. Please contact our Environmental Health Team to make sure you meet all other requirements under the Control of Pollution Act 1974 and the Environmental Protection Act 1990.

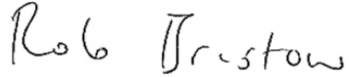
2. For information on the NRMM Low Emission Zone requirements and to register NRMM, please visit "<https://www.london.gov.uk/what-we-do/environment/pollution-and-air-quality/nrmm>

3. Where possible, the use of delivery vehicles is consolidated and, the use of electric vehicles be considered.

4. The surrounding footways and carriageway must not be blocked during the installation/ removal of event. Temporary obstructions during the installation/ removal must be kept to a minimum and should not encroach on the clear space needed to provide safe passage for pedestrians or obstruct the flow of pedestrian, cyclist and vehicular traffic. All vehicles associated with the installation must only park/ stop at permitted locations and within the time periods permitted by existing on-street restrictions.

5. Any temporary lighting installed as part of the events are advised to comply with the 'Bats and Lighting in the UK Guidance' produced by the Bats Conservation Trust and any flood lights should be directed away from any trees, areas of shrubs or hedge lines.
6. The applicant shall be responsible for disposing of all refuse arising from the business. The applicant will not use park bins to dispose of waste from their business in accordance with the licensing agreement.

Yours sincerely

A handwritten signature in black ink that reads "Rob Bristow". The signature is written in a cursive, slightly informal style.

Rob Bristow

Director of Planning, Transport and Sustainability
Climate and Inclusive Growth Directorate

INFORMATION FOR APPLICANTS GRANTED PLANNING PERMISSION SUBJECT TO CONDITIONS, OR WHERE PERMISSION HAS BEEN REFUSED.

General Information

This permission is subject to due compliance with any local Acts, regulations, building by-laws and general statutory provisions in force in the area and nothing herein shall be regarded as dispensing with such compliance or be deemed to be a consent by the Council thereunder.

Your attention is drawn to the provisions of the Building Regulations 1985 and related legislation which must be complied with to the satisfaction of the Council's Building Control Officer, PO Box 80771, London SW2 9QQ.

The Council's permission does not modify or affect any personal or restrictive covenants, easements, etc., applying to or affecting the land or the rights of any person entitled to the benefits thereof.

STATEMENT OF APPLICANT'S RIGHTS ARISING FROM THE REFUSAL OF PLANNING PERMISSION OR FROM THE GRANT OF PERMISSION SUBJECT TO CONDITIONS.

Appeals to the Secretary of State

If the applicant is aggrieved by the decision of the local planning authority to refuse permission or approval for the proposed development or to grant permission or approval subject to conditions, he may appeal to the Secretary of State in accordance with Section 78 of the Town and Country Planning Act 1990 within six months from the date of this notice. Appeals must be made on a form which is obtainable from The Planning Inspectorate, Room 3/13 Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN. Alternatively an Appeal form can be downloaded from their website at <https://www.gov.uk/appeal-planning-decision>. The Secretary of State has power to allow longer period for the giving of a notice of appeal but he will not normally be prepared to exercise this power unless there are special circumstances which excuse the delay in giving notice of appeal. The Secretary of State is not required to entertain an appeal if it appears to him that permission for the proposed development could not have been granted by the local planning authority, or could not have been so granted otherwise than subject to the conditions imposed by them, having regard to the statutory requirements, to the provisions of the development order, and to any directions given under the order.

Purchase Notice

If permission to develop land is refused or granted subject to conditions, whether by the local planning authority or by the Secretary of State for the Environment, and the owner of the land claims that the land has become incapable of reasonably beneficial use in its existing state and cannot be rendered capable of reasonable beneficial use by the carrying out of any development which has been or would be permitted, he may serve on the London Borough of Lambeth a purchase notice requiring that Council to purchase his interest in the land in accordance with the provisions of Section 137 of the Town and Country Planning Act 1990.

Compensation

In certain circumstances, a claim may be made against the local planning authority for compensation, where permission is refused or granted subject to conditions by the Secretary of State for the Environment on appeal or on a reference of the application to him. The circumstances in which such compensation is payable are set out in Section 120 and related provision of the Town and Country Planning Act 1990.

5.2 Appendix 2 – List of main planning policies

London Plan (2021)

GG1 Building strong and inclusive communities
GG2 Making the best use of land
GG3 Creating a healthy city
GG5 Growing a good economy
D8 Public Realm
D14 Noise
S1 Developing London's social infrastructure
S4 Play and informal recreation
S6 Public toilets
E9 Retail, markets and hot food takeaways
E10 Visitor infrastructure
HC1 Heritage conservation and growth
HC5 Supporting London's culture and creative industries
HC6 Supporting the night-time economy
G1 Green infrastructure
G2 London's Green Belt
G3 Metropolitan Open Land
G4 Open Space
G6 Biodiversity and access to nature
G7 Trees and woodlands
SI 1 Improving air quality
SI 2 Minimising greenhouse gas emissions
SI 7 Reducing waste and supp
SI 12 Flood risk management
SI 13 Sustainable drainage
T1 Strategic approach to transport
T3 Transport capacity, connectivity and safeguarding
T4 Assessing and mitigating transport impacts
T5 Cycling
T6 Car parking
T7 Deliveries, servicing and construction

Regional Guidance

Relevant publications from the GLA include:

- Accessible London: Achieving and Inclusive Environment SPG (2014)
- Culture and Night-Time Economy SPG (2017)
- Planning for Equality and Diversity in London SPG (2007)

Lambeth Local Plan 2020- 2035 (2021)

D2 Presumption in favour of sustainable development
ED7 Town Centres
ED8 Evening Economy and Food and Drink Uses
ED13 Visitor Attractions, Leisure, Arts and Culture Uses

T1 Sustainable Travel
T2 Walking
T3 Cycling
T4 Public Transport Infrastructure
T6 Parking
T7 Servicing
EN1 Open Space and Biodiversity
EN3 Decentralised energy
EN4 Sustainable design and construction
EN5 Flood Risk
EN6 Sustainable drainage systems and water management
EN7 Sustainable waste management
Q1 Inclusive environments
Q2 Amenity
Q3 Safety, crime prevention and counter-terrorism
Q5 Local Distinctiveness
Q6 Urban design: public realm
Q10 Trees
Q12 Refuse and recycling
Q14 Development in gardens and amenity Spaces
Q15 Boundary Treatments
Q20 Statutory Listed Buildings
Q22 Conservation Area
PN5 Clapham

Local Guidance / Supplementary Planning Documents (SPD)

Relevant local guidance and SPDs for Lambeth include:

- Refuse & Recycling Storage Design Guide (2021)
- Waste & Recycling Storage and Collection Requirements (2022)

5.3 **Appendix 3 – List of consultees**

Internal consultees

Conservation and Design

Parks & Open Spaces

Other consultees

The Clapham Society

St. Lukes Avenue Residents Assoc

Gaunden Group Community Group

Ward Councillors

Kennington Oval & Vauxhall Forum